

URGENT MEMO

TO: H.E. GEN. SALVA KIIR MAYARDIT, PRESIDENT OF THE REPUBLIC OF SOUTH SUDAN

FROM: NATIONAL EXPERTS OF SOUTH SUDAN

DATE: 25TH JULY 2022

SUBJECT: PRESERVATION, MANAGEMENT AND DEVELOPMENT OF WATER RESOURCES AND WETLANDS OF SOUTH SUDAN

I. INTRODUCTION

As your Excellency is aware, the case of preserving, managing and developing water resources and wetlands in South Sudan has become a serious concern worth paying keen attention to. The hot case in point now is the alarming **dredging of rivers and revisiting of digging of Jonglei Canal, which have implications on the Sudd Region and its Ramsar status as a UNESCO biosphere reserve**. That is why the national experts came together to appreciate the right and timely decision you took courageously to suspend the planned dredging of Bahr El Ghazal/Naam River.

Having analyzed the MoU signed in Cairo on 28th July 2021 between the respective ministries of Water Resources and Irrigation of the Republic of South Sudan and the Arab Republic of Egypt to **dredge and navigate the Nile with its tributaries**; building on the outcome of public consultations held in Juba between 10th to 14th July 2022 for promoting scientific understanding of water resources and floods; and taking stock of public reactions on all these, we would like to share with Your Excellency the following concise implications and possible solutions:

II. SECURITY, ENVIRONMENTAL AND HUMANITARIAN IMPLICATIONS

1. Water that flows in the Nile is not a monopoly of South Sudan alone and can create emotional security issues if not managed and utilized prudently using scientific approaches and guided by international legal obligations.
2. Heavy rainfalls in the East Africa region have resulted into cycles of unprecedented flooding exacerbated by flat and lower topographical landscapes of South Sudan.
3. Global warming and climate change are unavoidable phenomena and cannot be addressed by draining off the valuable water resources or destroying the biodiverse wetlands of South Sudan.
4. Credible scientific studies have proven that each cycle of flooding is followed by consecutive three cycles of drought. South Sudan is already facing this reality and experiencing considerable reduction of rainfalls, which now requires preparedness in advance.
5. Bentiu-Rubkona and Wangkei bridges have been blocking the natural water flow in Unity State because they were built without compliance to international standards.

These problems can be addressed through the following recommended approaches that need to be adopted in short-term and long-term bases:

- 1) The Government of South Sudan should adhere to dictates of science and law, which categorically protect transboundary waters and the Sudd Wetland as Ramsar Site.
- 2) As a matter of water security, the government must build storage dams upstream and preventive dykes downstream in South Sudan to serve as hydropower generation mechanisms, flood controls measures, and developmental agricultural schemes, among others.
- 3) The government should commission credible feasibility studies and rigorous Environmental and Social Impact Assessments (ESIAs) prior to implementation of any major infrastructural development project in South Sudan. This entails capacity building of strong institutions.
- 4) The government should provide humanitarian and relief assistance to flood-affected population in all parts of South Sudan. This requires declaration of state of natural disaster emergency to urgently address the effects of flooding and other vulnerabilities.
- 5) The government should review the current situation of Bentiu-Rubkona and Wangkei bridges to ensure compliance with best international standards guided by ESIAs.

III. LEGAL AND POLITICAL IMPLICATIONS

1. The Memorandums of Understanding (MoUs) signed between Government of the Republic of South Sudan and the Government of the Arab Republic of Egypt, including the MoU signed by the respective ministries of Water Resources and Irrigation to dredge Bahr El Jebel Basin, including Bahr El Ghazal/Naam River, **all have no legal weight.**
2. The high-level defensive arguments on implementation of Resolution Number 02/2020 issued by the Council of Ministers on 25th September 2020 to authorize the dredging and reconsider the digging of Jonglei Canal, **should not ignore the legitimate wisdom of people of South Sudan.**

These legal and political problems can be addressed through these scientific approaches:

- 1) All MoUs, protocols and agreements signed so far must be reviewed and validated by the Minister of Justice and Constitutional Affairs of the Republic of South Sudan, and subsequently endorsed by the Parliament after being passed in the Council of Ministers. **Speeding up accession to the Nile Basin Cooperative Framework Agreement (CFA) is now paramount.**
- 2) The wisdom of people of South Sudan must be respected and upheld all the time to **keep our nation-state united and safeguarded** under high-level authority of the President of the Republic to review the resolutions of Council of Ministers in case of public discontent.

IV. CONCLUSION

Your Excellency, kindly rest assured that the national experts of the Republic of South Sudan are hereby standing ready to support you firmly as they work in unison to provide technical details of best course of scientific action on floods mitigation, river routes navigation, limited safe dredging, preservation of Sudd Region and development of water resources in South Sudan. **Water and wetlands are blessings for sustainable development and dignified livelihoods security for our people.**